



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue, S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

July 14, 2016

All Active Grantees of: DOT-SP 4453, DOT-SP 5206, DOT-SP 8453, DOT-SP 8554, DOT-SP 8723, DOT-SP 9623, DOT-SP 10751, DOT-SP 11579 and DOT-SP 12677

This is in response to our December 21, 2015 show cause letter proposing to terminate DOT-SP 4453, DOT-SP 5206, DOT-SP 8453, DOT-SP 8554, DOT-SP 8723, DOT-SP 9623, DOT-SP 10751, DOT-SP 11579 and DOT-SP 12677 and our clarification letter dated January 28, 2016.

The provisions of these permits were incorporated into the Hazardous Materials Regulations under Docket No. HM-233D in a final rule published in the Federal Register on December 21, 2015 (80 FR 79424) with an effective date January 20, 2016.

The clarification letter was issued to provide grantees of these permits a transition period to ensure that their operations are compliant with the new regulations; therefore, PHMSA indicated it would not terminate these permits prior to June 1, 2016. Since that date has passed, in accordance with 49 CFR § 107.121 the Pipeline and Hazardous Materials Safety Administration is terminating these permits on July 1, 2016.

You may request reconsideration of this decision within 20 days of receipt of this letter. In accordance with 49 CFR § 107.123 a request for reconsideration must:

- 1) Be in writing;
- 2) State in detail any alleged errors of fact and law;
- 3) Enclose any additional information needed to support the request; and
- 4) State in detail the modification of the final decision sought.

If you have any questions regarding the proposed actions, you may contact PHMSA's Approvals and Permits Division at 202-366-4535.

Sincerely,

for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Tracking Number: